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James L. Ugalde, Esq.
CLARK HILL PLC
3200 N. Central Ave., Suite 1600
Phoenix, Arizona 85012
For information contact:
Kelly Webster – kwebster@clarkhill.com

Trustee Sale No. 1001252-1

**NOTICE OF TRUSTEE'S SALE AND NOTIFICATION OF
DISPOSITION OF PERSONAL PROPERTY**
(Alerus Financial, N.A./Cactus Shell LLC)

The following legally described trust property will be sold, pursuant to the power of sale under the *Deed of Trust* (as amended or modified, the "Deed of Trust") recorded on November 16, 2018, at Recording No. 20180855081, in the Official Records of the County Recorder for Maricopa County, Arizona (the "Official Records"). **NOTICE! IF YOU BELIEVE THERE IS A DEFENSE TO THE TRUSTEE SALE OR IF YOU HAVE AN OBJECTION TO THE TRUSTEE SALE, YOU MUST FILE AN ACTION AND OBTAIN A COURT ORDER PURSUANT TO RULE 65, ARIZONA RULES OF CIVIL PROCEDURE, STOPPING THE SALE NO LATER THAN 5:00 P.M. MOUNTAIN STANDARD TIME OF THE LAST BUSINESS DAY BEFORE THE SCHEDULED DATE OF THE SALE, OR YOU MAY HAVE WAIVED ANY DEFENSES OR OBJECTIONS TO THE SALE. UNLESS YOU OBTAIN AN ORDER, THE SALE WILL BE FINAL.** The sale will occur at public auction to the highest bidder, at **Clark Hill PLC, 3200 North Central Avenue, Suite 1600, Phoenix, Arizona 85012**, on **October 6, 2026, at 11:00 a.m.** of said day.

The following additional information concerning the trust real property, the Deed of Trust, and the Trustee's Sale is provided pursuant to A.R.S. § 33-808(C):

Street Address or Identifiable Location: 6730 West Cactus Road, Peoria, Arizona 85381

Legal Description: See attached **Exhibit A**

Tax Parcel Number(s): 200-77-009H

Original Principal Balance shown on Deed of Trust: \$1,575,000.00

Beneficiary's Name and Address: Alerus Financial, N.A., as successor in interest to Metro Phoenix Bank, 2300 S. Columbia Rd., Grand Forks, ND 58201

Trustor's Stated Name and Address: Cactus Shell LLC, 1826 Northwood Dr., Troy, MI 48084

Trustee's Name, Address and Telephone Number: James L. Ugalde, Esq., Clark Hill PLC, 3200 North Central Avenue, Suite 1600, Phoenix, Arizona 85012, Telephone: (602) 440-4817, Email: jugalde@clarkhill.com (for information contact Kelly Webster, Telephone: (602) 440-4820, Email: kwebster@clarkhill.com)

Manner of Trustee Qualification: Member of State Bar of Arizona (A.R.S. § 33-803(A)(2))

Name of Trustee's Regulator: State Bar of Arizona (Arizona Supreme Court)

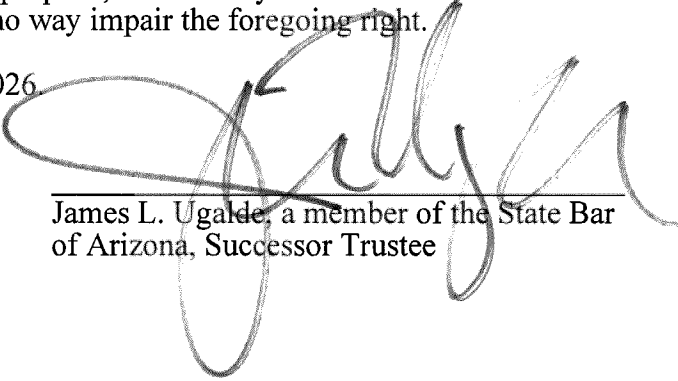
Personal Property Sale: At the same time and location as stated above, and pursuant to A.R.S. § 47-9604(A)(2) and A.R.S. § 47-9604(B)(2), the Trustee will also sell the personal property and fixtures described in the Deed of Trust and all collateral listed on the following UCC Financing Statement:

UCC Financing Statement at Filing No. 2014-003-8120-0 filed on December 9, 2014, and continued pursuant to the UCC Financing Statement Amendments filed on November 7, 2019 and November 18, 2024, with the Office of the Secretary of State for the State of Arizona

The sale will be made for cash, federal funds wire transfer, or other form of payment satisfactory to Trustee (payable at the time of sale or as allowed by the Trustee under Arizona law), but without covenant or warranty, express or implied, regarding title, condition, possession, encumbrances, or rights, requirements, or limitations of any third parties or any other matter, to pay the obligations secured by the Deed of Trust in whole or in part. Every bidder except for Beneficiary will be required to provide a \$10,000.00 deposit in form satisfactory to Trustee as a condition to entering a bid. Beneficiary reserves the right to transfer the secured indebtedness to, and/or to acquire title to all or part of the collateral in the name of, a title-holding affiliate following the commencement of this sale.

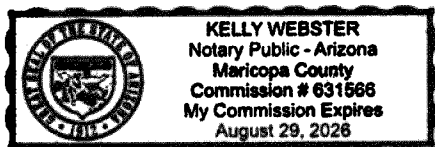
This sale will not exhaust the power of sale contained in the Deed of Trust as to any remaining property encumbered by the Deed of Trust, which may, at Beneficiary's option, be sold in one or more subsequent sale proceedings. The recordation of this Notice does not constitute an election to proceed against any given collateral, or to pursue any given remedy, to the exclusion of any other collateral or remedy. Trustee and Beneficiary expressly reserve the right, without impairing the effectiveness of the sale described herein, to conduct one or more further judicial or non-judicial sales of any of Beneficiary's co^{Unofficial Document} clear or perfect title to any portion of or interest in the collateral or for any other purpose; the delivery or recordation of a Trustee's Deed to Beneficiary or any third party will in no way impair the foregoing right.

DATED this 23rd day of June, 2026


James L. Ugalde, a member of the State Bar
of Arizona, Successor Trustee

STATE OF ARIZONA)
) ss.
County of Maricopa)

The foregoing *Notice of Trustee's Sale and Notification of Disposition of Personal Property* was acknowledged before me this 23rd day of June, 2026, by James L. Ugalde, a member of the State Bar of Arizona, Successor Trustee.





Notary Public

EXHIBIT A¹**(Legal Description)**

THE LAND REFERRED TO HEREIN BELOW IS SITUATED IN THE CITY OF PEORIA, COUNTY OF MARICOPA, STATE OF ARIZONA AND IS DESCRIBED AS FOLLOWS:

PARCEL NO. 1:

THAT PORTION OF THE SOUTHEAST QUARTER OF SECTION 13, TOWNSHIP 3 NORTH RANGE 1 EAST OF THE GILA AND SALT RIVER BASE AND MERIDIAN IN THE CITY OF PEORIA, COUNTY OF MARICOPA, STATE OF ARIZONA, DESCRIBED AS FOLLOWS:

COMMENCING AT THE BRASS CAP MONUMENT BEING THE SOUTHEAST CORNER OF SAID SECTION;

THENCE WESTERLY ALONG THE SOUTH LINE OF SAID SECTION SOUTH 89 DEGREES 53 MINUTES 35 SECONDS WEST 90.04 FEET;

THENCE NORTHERLY PARALLEL WITH THE EAST LINE OF SAID SECTION 13, NORTH 1 DEGREE 40 MINUTES 20 SECONDS EAST 55.02 FEET TO A POINT ON THE NORTH LINE OF THE SOUTH 55 FEET OF SAID SECTION, SAID POINT DISTANT WESTERLY 25.00 FEET FROM THE WEST LINE OF THE EAST 65 FEET OF SAID SECTION, SAID POINT ALSO BEING THE TRUE POINT OF BEGINNING;

THENCE WESTERLY ALONG SAID NORTH LINE SOUTH 89 DEGREES 53 MINUTES 35 SECONDS WEST 185.11 FEET;

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THENCE PARALLEL WITH THE EAST LINE OF SAID SECTION, NORTH 1 DEGREE 40 MINUTES 20 SECONDS EAST 210.10 FEET;

THENCE PARALLEL WITH THE SOUTH LINE OF SAID SECTION NORTH 89 DEGREES 53 MINUTES 35 SECONDS EAST 210.10 FEET TO SAID WEST LINE OF THE EAST 65 FEET OF SECTION 13;

THENCE ALONG SAID WEST LINE SOUTH 1 DEGREE 40 MINUTES 20 SECONDS WEST 185.11 FEET TO A POINT DISTANT NORTHERLY THEREON 25.00 FEET FROM SAID NORTH LINE OF THE SOUTH 55 FEET OF SECTION 13;

THENCE SOUTH 45 DEGREES 46 MINUTES 58 SECONDS WEST 35.89 FEET TO THE TRUE POINT OF BEGINNING.

PARCEL NO. 2:

THE NORTH 15 FEET OF THE SOUTH 55 FEET AND THE WEST 10 FEET OF THE EAST 65 FEET OF THE SOUTH 265 FEET OF THE EAST 275 FEET OF THE SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 13, TOWNSHIP 3 NORTH RANGE 1 EAST OF THE GILA AND SALT RIVER BASE AND MERIDIAN, IN THE CITY OF PEORIA, COUNTY OF MARICOPA, STATE OF ARIZONA;

EXCEPT THEREFROM THAT PORTION DESCRIBED AS FOLLOWS:

¹ Terms not defined herein shall have the meaning ascribed to them in the Deed of Trust.

BEGINNING AT THE INTERSECTION OF THE NORTH LINE OF THE SOUTH 40 FEET AND THE WEST LINE OF THE EAST 55 FEET OF SAID SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 13;

THENCE ALONG SAID WEST LINE NORTH 1 DEGREE 40 MINUTES 20 SECONDS EAST 25.00 FEET;

THENCE IN A DIRECT LINE TO A POINT ON SAID NORTH LINE, SAID POINT BEARING SOUTH 89 DEGREES 53 MINUTES 35 SECONDS WEST 25.00 FEET FROM THE POINT OF BEGINNING FOR THIS DESCRIPTION;

THENCE NORTH 89 DEGREES 53 MINUTES 35 SECONDS EAST 25.00 FEET TO THE POINT OF BEGINNING.

PARCEL NO. 3:

THAT PORTION OF THE SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 13, TOWNSHIP 3 NORTH RANGE 1 EAST OF THE GILA AND SALT RIVER BASE AND MERIDIAN IN THE CITY OF PEORIA, COUNTY OF MARICOPA STATE OF ARIZONA, DESCRIBED AS FOLLOWS:

BEGINNING AT THE INTERSECTION OF THE NORTH LINE OF THE SOUTH 55 FEET AND THE WEST LINE OF THE EAST 65 FEET OF SAID SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 13;

THENCE ALONG SAID WEST LINE NORTH 1 DEGREE 40 MINUTES 20 SECONDS EAST 25.00 FEET;

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THENCE IN A DIRECT LINE TO A POINT IN SAID NORTH LINE, SAID POINT BEARING SOUTH 89 DEGREES 53 MINUTES 35 SECONDS WEST 25.00 FEET FROM THE POINT OF BEGINNING FOR THIS DESCRIPTION;

THENCE NORTH 89 DEGREES 53 MINUTES 35 SECONDS EAST 25.00 FEET TO THE POINT OF BEGINNING.

For Information Purposes Only: The real property or its address is commonly known as 6730 W. Cactus Rd., Peoria, AZ 85381. Tax Parcel No. 200-77-009H.

TOGETHER with all of Trustor's right, title, and interest in and to the above described real property, together with all existing or subsequently erected or affixed buildings, improvements and fixtures; all easements, rights of way, and appurtenances; all water and water rights flowing through, belonging or in anyway appertaining to the Real Property, and all of Trustor's water rights that are personal property under Arizona law, including without limitation all type 2 nonirrigation grandfathered rights (if applicable), all irrigation rights, all ditch rights, rights to irrigation district stock, all contracts for effluent, all contracts for Central Arizona Project water, and all other contractual rights to water, and together with all rights (but none of the duties) of Trustor as declarant under any presently recorded declaration of covenants, conditions and restrictions affecting real property; and all other rights, royalties, and profits relating to the real property, including without limitation all minerals, oil, gas, geothermal and similar matters.